§ 13 · RESEARCH

Regulatory **Germany**

BVL notification, LMIV + NemV + LFGB labeling, ashwagandha watchlist, VAT, GDPR health data.

Scope: What Alche needs to know to legally sell third-party and own-brand supplements into the German market from a Berlin-based operation. **Last research sweep:** April 2026. **Important:** This is research, not legal advice. A Fachanwalt für Lebensmittelrecht consultation is recommended before Phase 2 launch.

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1. BVL Notification — §5 NemV

Who must notify: The economic operator placing the product on the German market for the first time. This is the manufacturer, importer, or distributor. For curated third-party (Phase 1), if Alche is the first to bring that product into Germany, Alche is the notifier. If the brand is already notified by the original importer, Alche as downstream retailer does not re-notify, but supply-chain liability transfers upstream if the upstream actor failed to notify.

Cost: Free. The BVL charges no fee for the notification under §5 NemV.

Process: - One notification per product (SKU-level, including different flavors/strengths). Label sample must be submitted. - No approval — this is a pure "file and acknowledge" system. The BVL forwards to federal state authorities who carry out market surveillance. - You receive a PDF receipt only. No marketability certificate is issued. - BVL forwards to BMLEH (federal ministry) and the Länder food authorities.

Major 2026 change: From **1 July 2026**, notifications must exclusively use the new online form in the federal administrative portal (Verwaltungsportal Bund) — the old PDF-based process is being sunset under the Online Access Act (Onlinezugangsgesetz). Authentication via BundID or Mein Unternehmenskonto is optional but recommended for record-keeping.

Timeline: Instant — the notification is valid immediately upon submission. There is no waiting period before first sale.

Gotcha — non-EU brands: If Alche sources from a UK/US brand, that brand needs either an EU legal representative or Alche must take full legal operator responsibility on the label. Post-Brexit UK brands are explicitly not EU-established.

Sources: - BVL — Modernisierung Anzeigeverfahren NEM (Jan 2026) - BVL — Themenseite Nahrungsergänzungsmittel - BVL — NEM-Anzeige Online - BayernPortal — Anzeige bei Verkauf in Deutschland - Musheez — Germany food supplement notification procedure

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2. Labeling Requirements (NemV + LMIV + LFGB)

Three layers stack on every German supplement label: the EU Food Information Regulation (LMIV / FIC 1169/2011), the German Food Supplement Ordinance (NemV), and the LFGB framework.

Mandatory fields (must appear on pack, in German, minimum 1.2 mm font — 0.9 mm on packs where largest surface < 80 cm²)

1. The word **"Nahrungsergänzungsmittel"** — this literal term, prominently displayed. Replacing with "Food Supplement" only is non-compliant for the German market.
2. Product name / Bezeichnung (e.g., "Magnesium-Kapseln").
3. Characterising ingredient categories (vitamins, minerals, botanical names).
4. Net content / Füllmenge (same field of view as Bezeichnung).
5. Nutrient quantities per recommended daily dose (% NRV for vitamins/minerals).
6. **Recommended daily dose (empfohlene Tagesverzehrmenge).**
7. **Warning: do not exceed the recommended daily dose** ("Die angegebene empfohlene tägliche Verzehrmenge darf nicht überschritten werden").
8. **Warning: not a substitute for a varied, balanced diet** ("Nahrungsergänzungsmittel sind kein Ersatz für eine ausgewogene und abwechslungsreiche Ernährung").
9. **Warning: keep out of reach of children** ("Außerhalb der Reichweite von Kindern aufbewahren").
10. Ingredients list (absteigend nach Gewicht).

11. Allergens — highlighted (bold/italic/color), 14 EU-regulated allergen categories.
12. Net weight / volume.
13. Best-before date (Mindesthaltbarkeitsdatum) + storage conditions if relevant ("Kühl und trocken lagern").
14. **Batch / Los number** (required for traceability under Regulation 178/2002).
15. **Responsible food business operator** — full address of the manufacturer or importer/distributor established in the EU. A Berlin GmbH/UG address satisfies this.
16. Country of origin if omission would mislead (Art. 26 LMIV). Note: "Made in Germany" requires the characteristic substances to originate there — otherwise the true origin of key ingredients (e.g., "Vitamin C: China") must be stated.

Online-specific obligation

Under Art. 14 LMIV, all mandatory info except MHD must be available **before** the consumer completes checkout. A PDF link or expandable product page section is the standard approach.

Häufige Kennzeichnungsmängel to avoid

- Missing "Nahrungsergänzungsmittel" keyword
- Font too small to read
- No warning about daily dose / child safety / diet
- Missing batch number or responsible operator address
- Ingredients listed only in English

Sources: - LFGB — Gesetze im Internet - Verbraucherzentrale — Kennzeichnung von Nahrungsergänzungsmitteln - FET e.V. — Lebensmittelkennzeichnung - BfR — FAQ Nahrungsergänzungsmittel

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3. Health Claims — What's Safe to Say

Legal framework

Health claims on food are governed EU-wide by **Regulation (EC) No 1924/2006** (Nutrition and Health Claims Regulation, "NHCR"). Germany enforces via LFGB §11–12 and the Health Claims Regulation directly.

Authorized EU claims

The Commission maintains the **EU Register of Health Claims** — the authoritative list of permitted wording. - Approximately **~260 approved** Article 13(1) "function" claims (e.g., "Vitamin D contributes to the normal function of the immune system"). The Commission rejected roughly 2,000+ claims. - Claims must be used **verbatim** — brand paraphrasing is not allowed, though minor adaptation for consumer clarity is tolerated if meaning is preserved. - Each claim has **conditions of use** (minimum nutrient content) that the product must meet.

Botanical "on hold" claims — the grey zone

~1,548 botanical-related claims have been suspended since 2012 pending Commission framework. The EFSA evaluation was paused because botanicals couldn't meet the pharmacology-style evidence threshold. - Currently **tolerated** under Article 28(5) transitional provisions — brands use them with disclaimers like "evaluation pending." - **CJEU Case C-386/23 (Novel Nutriology, 2024)** confirmed: unauthorised botanical claims remain prohibited even if on-hold. The case involved a saffron/melon extract product advertised for mood/stress — the court upheld the ban. - **ECJ ruling of 30 April 2025** reinforced: health claims on botanicals are only permitted when scientifically substantiated and Commission-approved. - **Practical rule for Alche:** Use only Register-approved wording verbatim. Avoid botanical health claims entirely in Phase 1. For own-brand (Phase 2), structure claims around the vitamin/mineral content of the botanical (e.g., if the product contains added Vitamin C, claim the Vitamin C benefit, not the botanical).

Strictly forbidden — disease claims

Under LMIV Art. 7 and Regulation 1924/2006, claims that attribute prevention, treatment, or cure of disease are prohibited on food. Reclassification as an unlicensed medicinal product (triggering BfArM enforcement) is a real risk.

- Permitted: "Vitamin D contributes to the maintenance of normal bones"
- Prohibited: "Vitamin D treats osteoporosis" / "prevents bone loss"
- Risk reduction claims (Art. 14(1)(a)) are allowed but require specific Commission approval (e.g., the plant stanol/cholesterol claim).

Sources: - EU Register of Health Claims - EFSA — Health Claims Art. 13 - EUR-Lex — Regulation 1924/2006 - Mills & Reeve — On-hold botanical claims EU challenge - FoodNavigator — How functional food claims are regulated (Oct 2025)

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4. Ashwagandha — Watchlist Status

BfR warning — Mitteilung 039/2024 (10 September 2024)

The German Federal Institute for Risk Assessment (BfR) explicitly advised **against use by children, pregnant/breastfeeding women, and persons with liver disease** and called for restraint in the general population. Reported adverse events include liver damage (including acute liver failure), GI distress, headaches, dizziness, rashes. Known interactions with antidiabetics, antihypertensives, immunosuppressants.

Current legal status in Germany (April 2026)

- **Ashwagandha is NOT banned in Germany.** Sale remains legal.
- The BVL's Stoffliste Pflanzenzubereitung (2020) classifies it as "schwach giftig" (mildly toxic) and recommended inclusion on Annex III Part B of Regulation 1925/2006 (restricted use).
- Germany's BfArM has not classified Ashwagandha as a medicinal product.

EU-wide trajectory

- **Denmark** — banned in food supplements since April 2023. Triggered 20+ RASFF alerts in 2024 for unsafe Withania somnifera.
- **France (ANSES)**, **Netherlands**, **Germany (BfR)** — advisory warnings issued.
- **EMA HMPC** — rejected adoption of an EU herbal monograph.
- An **Article 8 procedure under Regulation (EC) 1925/2006** has been recommended. Ashwagandha is one of 12–13 prioritized substances targeted for EU-wide regulation (list also includes black cohosh, St. John's wort, maca, tribulus terrestris, melatonin, piperine, synephrine, tryptophan, coumarin, curcumin, tulsi, Australian tea tree).
- If the Art. 8 procedure concludes with restriction or ban, it could take effect 2026–2028 based on standard timelines.
- **Poland** applies national maximum: 3g root powder/day, max 10 mg withanolides per daily dose.

Verbraucherzentrale NRW Marktcheck (April 2026)

Reviewed 73 Ashwagandha products — most were flagged for overblown claims without scientific backing and **missing warnings** for target risk groups (pregnant women, liver disease, children). This is a concrete enforcement vector: inadequate warnings on label = LFGB §11 violation.

Risk assessment for Alche

- **Legal to sell today** — but in the BfR/Verbraucherzentrale crosshairs.
- If Alche carries Ashwagandha, label must include **explicit risk-group warnings** (contraindicated in pregnancy, breastfeeding, liver disease, children).
- **Medium-term (12–24 months) risk** of EU ban via Art. 8 — building inventory strategy around Ashwagandha carries write-off exposure.
- Flag in the pitch: Alche should position as "BfR-compliant curation" — exclude or flag explicitly any substance on the 12-substance priority list.

Sources: - BfR — Ashwagandha Mitteilung 039/2024 (PDF) - BfR — Ashwagandha press release EN - Verbraucherzentrale NRW Marktcheck-Bericht April 2026 (PDF) - BVL HoA Working Group Food Supplements Report - Regask — Herbal supplement bans 2023–2025

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5. Penalties & Enforcement

Who inspects

- **Market surveillance is a Länder (federal state) task** — in Berlin, the Bezirksämter's Lebensmittelaufsicht carry out inspections, sample collection, and compliance checks.
- **BVL** coordinates nationally, handles RASFF notifications, runs the national notification database.

- **Zollamt (customs)** screens imports at the border.
- **Verbraucherzentrale (consumer associations)** and the Wettbewerbszentrale have private right-of-action — they can file Abmahnungen (cease-and-desist with cost demands) for labeling/claims violations. This is **a major practical enforcement vector** — more common than state prosecution in early stages.

Penalty ranges (LFGB)

- **Up to €50,000 per violation** under §60 Abs. 2 Nr. 2 LFGB (most general violations).
- **Up to €20,000** under §60 Abs. 5 Nr. 3 LFGB (some administrative offenses).
- **Criminal liability (§59 LFGB):** Imprisonment up to 2 years or fine for placing unsafe food on the market, or repeated/persistent violations.
- **Publication of violations** (§40 Abs. 1a LFGB) — when fines of ≥€350 are expected, authorities **must** publicly name the operator. Reputational damage often exceeds the fine.
- **Abmahnung costs**: typically €500–€1,500 per letter, plus legal fees and injunction costs. Competitors and associations use this aggressively.

Recent German RASFF notifications (illustrative — all active 2025)

- Frutoslabin (Russia, distributed via Nürnberg) — carcinogenic danthron contamination, full recall
- EU-wide RASFF alert — serrapeptase supplements (unapproved novel food)
- Non-authorized novel food ingredients flagged: Tongkat Ali, DHEA, DMAA, 1,3-DMAA, GABA, Fulvic acid, Phyllanthus niruri, Mucuna pruriens, Lithium orotate, Convolvulus pluricaulis, beta-alanine, DMAE
- Sildenafil/Tadalafil adulteration of "natural" products

Implication for Alche curation: Every third-party SKU must be cross-checked against the **EU Novel Food Catalogue**. Novel food status is a common compliance trap — many "trendy" botanicals (tongkat ali, mucuna, fulvic acid) are not authorized as foods in the EU.

Sources: - Bundestag WD — Straf- und Bußgeldvorschriften LFGB (PDF) - LFGB — Gesetze im Internet - BVL — RASFF December 2025 notifications (PDF) - lebensmittelwarnung.de — Meldungen - Verbraucherzentrale — Verbraucherwarnungen NEM

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6. VAT Rules — 2026 Rates

Germany has three Umsatzsteuer rates: 19% (standard), 7% (reduced), 0%.

Rule of thumb for supplements

FORM	KN POSITION	VAT
Capsules / tablets / powders (classified as food preparation)	2106	**7%**
Drinkable supplements / liquid in ready-to-drink containers	2202	**19%**
Anything classified as a Arzneimittel	Ch. 30	19%

Authoritative precedent

BFH, Urteil vom 30. März 2010, VII R 35/09 — liquid, drinkable supplements in trinkfläschchen are classified as KN 2202 (beverages) and taxed at 19%, even when the recommended dose is small or intended to be diluted. This line has been reinforced by **Niedersächsisches FG Urteil vom 1.9.2022 – 5 K 70/20** (liquid in plastic sachets also 19%).

ECJ C-410/08 to C-412/08 — encapsulated supplements classified as KN 2106 and eligible for reduced 7% rate.

Form matters more than content

A capsule containing vitamin C = 7%. The same vitamin C dose in a ready-to-drink shot = 19%. For Phase 2 own-brand, form-factor choice has a direct ~11-point margin impact.

2026 confirmations

- 7% reduced rate remains applicable to KN 2106 capsules/powders.

- Effective 1 January 2026, restaurant/catering VAT permanently reduced to 7% (excludes beverages which stay at 19%). Does not directly affect e-commerce supplement retail but confirms the 7%/19% structure is stable.
- Broader tax reform discussion (moving to 21–22% standard) under CDU/CSU-SPD coalition — no 2026 enactment, monitor 2027.

Sources: - VATupdate — Comprehensive VAT Guide Germany 2026 - Rechtslupe — Umsatzsteuer trinkbare Nahrungsergänzungsmittel - Bundesfinanzhof — VII R 35/09 - Fiscal Solutions — Germany reduces VAT on food in restaurants to 7% from 2026

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7. Distance Selling — §312g BGB Widerrufsrecht

The 14-day cooling-off period

Under §312g Abs. 1 BGB, online buyers have a **14-day right of withdrawal** without stating reasons. This applies to supplements by default.

The hygiene exception — §312g Abs. 2 Nr. 3 BGB

Withdrawal right is **excluded** for "sealed goods which are not suitable for return for reasons of health protection or hygiene, where the seal has been broken after delivery."

Application to supplements

- Unopened, sealed bottle/canister/blister pack: right of withdrawal applies, customer can return.
- Once the **hygiene seal is broken** (inner foil, shrink-wrap, induction seal): right of withdrawal extinguishes.
- Requirement: a visible, meaningful seal that clearly signals "opening is a final act." Plain cardboard box without inner seal does **not** qualify.

CJEU C-681/17 — the narrow reading

The European Court of Justice held that the exception applies only when, after seal removal, the item is **permanently unfit for resale** for health/hygiene reasons, and no measures can restore saleability. Capsules/tablets/powders in direct-consumption packaging clearly meet this threshold.

Practical compliance for Alche

1. **Use hygiene seals on every SKU** — induction seals on bottles, shrink-wrap on cans, individual blister sealing. Without a seal, the exception doesn't apply and opened product must be accepted back.
2. **Communicate the exception clearly** in Widerrufsbelehrung, checkout flow, and product page — failure to inform = extended withdrawal period up to 12 months.
3. **Returns policy must allow withdrawal for sealed units** — no blanket "no returns on supplements" policy.

Sources: - BGB §312g — Gesetze im Internet - IT-Recht Kanzlei — Ausnahmen Widerrufsrecht - Paloubis — Ausschluss des Widerrufsrechts aus Gründen der Hygiene - disclaimer.de — NEM online kaufen juristischer Leitfaden

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8. Impressum / Imprint — §5 DDG

On 14 May 2024, the TMG was replaced by the **Digitale-Dienste-Gesetz (DDG)**. The Impressumspflicht is now §5 DDG (content substantively unchanged from old §5 TMG, but references should be updated).

Mandatory fields for a Berlin UG/GmbH online shop

1. Full company name including legal form (e.g., "Alche GmbH" or "Alche UG (haftungsbeschränkt)")
2. **Ladungsfähige Anschrift** — full street address (no PO box)
3. Managing director(s) with full first and last name
4. **Two contact channels** — email plus one of: phone number, live chat, video call, WhatsApp. KG Berlin (5 U 32/12) held that a contact form alone is insufficient
5. Register court and number — for Berlin UG/GmbH: Amtsgericht Charlottenburg, HRB xxxxxx
6. **Umsatzsteuer-ID** (or Wirtschafts-Identifikationsnummer) per §27a UStG

7. Regulatory authority (only if regulated — not typically needed for supplements)
8. Editorially responsible person (for content-heavy sites / editorial content per §18 Abs. 2 MStV)

Do NOT include

- Private Steuer-ID / income tax number
- Bank account details
- Explicit reference to "§5 TMG" or "§5 DDG" — legal opinion now recommends omitting paragraph citation to avoid formal-error risk from future renaming

Required for online shops

- **OS-Plattform link** under Art. 14 ODR Regulation: `https://ec.europa.eu/consumers/odr` with own email address
- Statement whether willing/obliged to participate in consumer dispute resolution (VSBG §36)
- AGB (general terms), Widerrufsbelehrung, Datenschutzerklärung separately linked

Penalties

- Up to **€50,000** under §25 DDG
- Abmahnung costs typically **€500–€1,500** — a common target for Wettbewerbszentrale and competitors

Sources: - e-recht24 — Impressum GmbH - e-recht24 — TMG wird DDG - AdSimple — Impressumpflicht Unternehmensformen - service-rechtsschutz — §5 DDG

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9. GDPR / DSGVO for Health Data

Why this matters for Alche

If the Alche app lets users share health info (symptoms, goals, medications, conditions) to receive supplement recommendations, this is processing of **Gesundheitsdaten** under **Art. 9 DSGVO** — a special category with strict requirements far exceeding standard personal data.

What counts as Gesundheitsdaten (broad reading per CJEU)

- Symptoms, diagnoses, medication lists
- Any data from which health status can be inferred (e.g., "I'm taking this supplement for my thyroid" → inferable thyroid condition)
- Biometric data (if used for identification)
- Genetic data
- Even indirect references (e.g., browsing history on "sleep supplements for anxiety")

Legal basis requirements

Default rule: processing of special category data is **prohibited** (Art. 9 Abs. 1). Exceptions require a specific legal basis. For Alche, the realistic option is **Art. 9 Abs. 2 lit. a — explicit consent (ausdrückliche Einwilligung).**

Requirements for valid Art. 9 consent: - **Explicit, not implied** — a pre-ticked checkbox or buried consent in T&Cs is invalid - **Separate consent box** specifically for health data processing, distinct from general T&C acceptance - **Specific purpose** — granular consent per processing purpose (e.g., separate consents for recommendations vs. analytics vs. marketing) - **Documented** (burden of proof on Alche) - **Freely given** — services can't be conditional on consent to unnecessary processing - **Withdrawable** — consent must be withdrawable as easily as it was given

Additional obligations

- **DSFA (Datenschutz-Folgenabschätzung)** — almost certainly required for a health-recommendation feature processing sensitive data
- **Data Protection Officer (DSB)** — required if systematic processing of special category data on a large scale (likely threshold for Alche at scale)
- **Technical & organizational measures** — encryption in transit and at rest, access controls, pseudonymization where possible, penetration testing

- **Deletion concept (Löschkonzept)** — how long is health data retained?
- **Data subject rights workflow** — Art. 15 (access), Art. 16 (rectification), Art. 17 (deletion), Art. 20 (portability)

Sanctions

Up to **€20 million or 4% of global annual turnover**, whichever is higher (Art. 83 Abs. 5). The Berlin Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI) is the supervisory authority for Berlin-based controllers.

Gotcha

If Alche's recommendation logic runs on third-party infrastructure (e.g., OpenAI API for matching), this is a data transfer subject to Art. 28 DSGVO (AVV) requirements, and potentially Art. 44+ (third-country transfers to US). The EU-US Data Privacy Framework is current legal basis — monitor for invalidation (Schrems III risk).

Sources: - DSGVO Art. 9 — dejure - DSGVO-Gesetz.de — Art. 9 - MUNAS — DSGVO und Gesundheitsdaten Praxisleitfaden - Datenschutz-Notizen — EuGH Art. 9

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10. Summary — Top 3 Regulatory Risks for the Pitch Deck

1. **Ashwagandha / botanical Art. 8 procedure.** 12–13 popular substances on the EU watchlist; Denmark has banned Ashwagandha; BfR warned publicly. Inventory/curation strategy must anticipate 12–24 month ban risk on ~10 popular botanicals. Mitigation: exclude the priority list from Phase 1, or carry with explicit risk-group warnings and small stock positions.
2. **Health claims enforcement.** ~260 authorized claims, verbatim-only wording, botanical claims in permanent legal limbo, 30 April 2025 ECJ ruling hardens the line. Abmahnung exposure is a real line item — budget €5–15k for one-off compliance disputes in Year 1. Mitigation: claims-review on every product description by a food law specialist before launch.
3. **Art. 9 DSGVO for health-data app features.** Explicit consent standards are strict; DSFA required; up to €20M fines. If Alche's "match me with supplements" feature touches health data, the consent architecture must be built correctly from day one — retrofitting is painful. Mitigation: privacy-by-design review with a DSGVO specialist pre-launch; keep health-data features optional and clearly gated.

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11. Action Checklist — Pre-Launch

- [ ] Appoint responsible food business operator (Alche GmbH, Berlin)
- [ ] File BVL notification per SKU via new online portal (target: live by June 2026, mandatory from 1 July 2026)
- [ ] Label audit per SKU against NemV checklist (above)
- [ ] Claims audit — every product page text reviewed against EU Register
- [ ] Hygiene seal on every SKU (inspect inbound from suppliers)
- [ ] Impressum, AGB, Widerrufsbelehrung, Datenschutzerklärung published and legally reviewed
- [ ] OS-Plattform link
- [ ] Cookie consent (TDDDG) + Art. 9 explicit consent flow for any health-data intake
- [ ] DSFA for app recommendation feature
- [ ] Register with BlnBDI (data protection authority Berlin) if DSB required
- [ ] Food-law Fachanwalt on retainer for Phase 2 own-brand launch